

बिड दस्तावेज़ / Bid Document

बिड विवरण / Bid Details	
बिड बंद होने की तारीख/समय / Bid End Date/Time	17-08-2026 20:00:00
बिड खुलने की तारीख/समय / Bid Opening Date/Time	17-08-2026 20:30:00
बिड पेशकश वैधता (बंद होने की तारीख से) / Bid Offer Validity (From End Date)	180 (Days)
मंत्रालय/राज्य का नाम / Ministry/State Name	Ministry Of Defence
विभाग का नाम / Department Name	Department Of Military Affairs
संगठन का नाम / Organisation Name	Indian Army
कार्यालय का नाम / Office Name	*****
शिकायत निवारण के संपर्क विवरण / Contact details of Grievance redressal	HOD Email id : pgurung.078y@gov.in Buyer Email id: abhinavp.989a@gov.in
कुल मात्रा / Total Quantity	1
वस्तु श्रेणी / Item Category	Surveillance Drone / Unmanned Aerial Vehicle (V2) (Defence Forces - Navy, Army and Air Force) (Q2)
उन्हीं/समान सेवा के लिए अपेक्षित विगत अनुभव के वर्ष / Years of Past Experience Required for same/similar service	3 Year (s)
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / MSE Relaxation for Years of Experience and Turnover	No
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / Startup Relaxation for Years of Experience and Turnover	No
विक्रेता से मांगे गए दस्तावेज़ / Document required from seller	Experience Criteria, Past Performance, Bidder Turnover, Certificate (Requested in ATC), OEM Authorization Certificate, OEM Annual Turnover, Additional Doc 1 (Requested in ATC), Additional Doc 2 (Requested in ATC), Additional Doc 3 (Requested in ATC), Additional Doc 4 (Requested in ATC), Compliance of BoQ specification and supporting document *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer

बिड विवरण/Bid Details	
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेजों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	No
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	3
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	3
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	3
विगत प्रदर्शन /Past Performance	50 %
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	No
बिड का प्रकार/Type of Bid	Single Packet Bid
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	2 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
अनुमानित बिड मूल्य / Estimated Bid Value	105000
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

आवश्यकता/Required	No
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ईपीबीजी विवरण /ePBG Detail

आवश्यकता/Required	No
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बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई खरीद वरीयता/MII Purchase Preference

एमआईआई खरीद वरीयता/MII Purchase Preference	No
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एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$	15
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	25

1. Experience Criteria: In respect of the filter applied for experience criteria, the Bidder or its OEM of the product offered in the bid {themselves or through reseller(s)} should have regularly, manufactured and supplied same or similar Category Products to any Central / State Govt Organization / PSU for number of Financial years as indicated above in the bid document before the bid opening date. Copies of relevant contracts and delivery acceptance certificates like CRAC to be submitted along with bid in support of having supplied some quantity during each of the Financial year. In case of bunch bids, the category of primary product having highest value should meet this criterion.

2. **Purchase preference to Micro and Small Enterprises (MSEs):** Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within $L-1+ 15\%$ (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 25% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

3. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

4. Past Performance: The Bidder or its OEM {themselves or through re-seller(s)} should have supplied same or similar Category Products for 50% of bid quantity, in at least one of the last three Financial years before the bid opening date to any Central / State Govt Organization / PSU. Copies of relevant contracts (proving supply of cumulative order quantity in any one financial year) to be submitted along with bid in support of quantity supplied in the relevant Financial year. In case of bunch bids, the category related to primary product having highest bid value should meet this criterion.

Surveillance Drone / Unmanned Aerial Vehicle (V2) (Defence Forces - Navy, Army And Air Force) (1 pieces)

तकनीकी विशिष्टियाँ /Technical Specifications

* जेम कैटेगरी विशिष्टि के अनुसार / As per GeM Category Specification

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
Included in Scope of Supply	UAV Bird (Drone)	Yes
	Ground Control Station (GCS) - Software (Hint: GCS to include payload operation control)	Yes
	GCS Compatible Hardware	Yes
UAV Bird Classification	Category of drone (as per Type Certificate in Drone rules, 2021)	Aeroplane, Rotorcraft, Hybrid Unmanned Aircraft System
	Sub-category of drone (as per Type Certificate in Drone rules, 2021)	Remotely Piloted aircraft System, Model Remotely Piloted Aircraft System, Autonomous Unmanned Aircraft System
	Classification of Drones (based on maximum all-up weight defined in drone rules, 2021)	Nano (Weighing Less than or equal to 250 grams), Micro (Weighing more than 250 grams, but less than or equal to 2 kilograms), Small (weighing more than 2 kilograms, but less than or equal to 25 kilograms), Medium (weighing more than 25 kilograms, but less than or equal to 150 kilograms), Large (weighing more than 150 kilograms)
UAV Bird - Performance	Maximum All-up weight (Hint: Lower value in each range is not included)	100 - 125 grams, 125 - 150 grams, 150 - 175 grams, 175 - 200 grams, 200 - 225 grams, 225 - 250 grams, 250 - 375 grams, 375 - 500 grams, 500 - 625 grams, 625 - 750 grams, 750 - 875 grams, 875 - 1000 grams, 1000 - 1125 grams, 1125 - 1250 grams, 1250 - 1375 grams, 1375 - 1500 grams, 1500 - 1625 grams, 1625 - 1750 grams, 1750 - 1875 grams, 1875 - 2000 grams, 2 - 3 kg, 3 - 4 kg, 4 - 5 kg, 5 - 6 kg, 6 - 7 kg, 7 - 8 kg, 8 - 9 kg, 9 - 10 kg, 10 - 11 kg, 11 - 12 kg, 12 - 13 kg, 13 - 14 kg, 14 - 15 kg, 15 - 16 kg, 16 - 17 kg, 17 - 18 kg, 18 - 19 kg, 19 - 20 kg, 20 - 21 kg, 21 - 22 kg, 22 - 23 kg, 23 - 24 kg, 24 - 25 kg, 25 - 30 kg, 30 - 35 kg, 35 - 40 kg, 40 - 45 kg, 45 - 50 kg, 50 - 55 kg, 55 - 60 kg, 60 - 65 kg, 65 - 70 kg, 70 - 75 kg, 75 - 80 kg, 80 - 85 kg, 85 - 90 kg, 90 - 95 kg, 95 - 100 kg, 100 - 105 kg, 105 - 110 kg, 110 - 115 kg, 115 - 120 kg, 120 - 125 kg, 125 - 130 kg, 130 - 135 kg, 135 - 140 kg, 140 - 145 kg, 145 - 150 kg, 150 - 160 kg, 160 - 170 kg, 170 - 180 kg, 180 - 190 kg, 190 - 200 kg, 200 - 210 kg, 210 - 220 kg, 220 - 230 kg, 230 - 240 kg, 240 - 250 kg, 250 - 260 kg, 260 - 270 kg, 270 - 280 kg, 280 - 290 kg, 290 - 300 kg, 300 - 310 kg, 310 - 320 kg, 320 - 330 kg, 330 - 340 kg, 340 - 350 kg, 350 - 360 kg, 360 - 370 kg, 370 - 380 kg, 380 - 390 kg, 390 - 400 kg, 400 - 410 kg, 410 - 420 kg, 420 - 430 kg, 430 - 440 kg, 440 - 450 kg, 450 - 460 kg, 460 - 470 kg, 470 - 480 kg, 480 - 490 kg, 490 - 500 kg Or higher

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
	Maximum Flight Time at Maximum all-up weight (In minutes) (Hint: Lower value in each range is not included)	5 - 15, 15 - 25, 25 - 35, 35 - 45, 45 - 55, 55 - 65 Or higher
	Maximum Wind Resistance (In km/hr) against which the UAV can operate without degradation in performance (Hint: Lower value in each range is not included)	15 - 20
	Maximum Flight Distance at Max All-up weight (In metres) (Hint: Distance between Take Off Point to farthest point on a one way distance Lower value in each range is not included)	1400 - 1500, 1500 - 1600, 1600 - 1700, 1700 - 1800, 1800 - 1900, 1900 - 2000, 2000 - 2500, 2500 - 3000, 3000 - 3500, 3500 - 4000, 4000 - 4500, 4500 - 5000, 5000 - 5500, 5500 - 6000, 6000 - 6500, 6500 - 7000, 7000 - 7500, 7500 - 8000, 8000 - 8500, 8500 - 9000, 9000 - 9500, 9500 - 10000, 10000 - 10500, 10500 - 11000, 11000 - 11500, 11500 - 12000, 12000 - 12500, 12500 - 13000, 13000 - 13500, 13500 - 14000, 14000 - 14500, 14500 - 15000, 15000 - 15500, 15500 - 16000, 16000 - 16500, 16500 - 17000, 17000 - 17500, 17500 - 18000, 18000 - 18500, 18500 - 19000, 19000 - 19500, 19500 - 20000, 20000 - 20500, 20500 - 21000, 21000 - 21500, 21500 - 22000, 22000 - 22500, 22500 - 23000, 23000 - 23500, 23500 - 24000, 24000 - 25000 Or higher
GCS Compatible Hardware	GCS Compatible Hardware included in the scope of supply	Tablet / Smartphone
Surveillance Payload	Availability of camera in payload housing	Yes
	Availability of Thermal Camera in payload housing	Yes, No
Approvals and Certifications	Availability of Industrial License, issued by Ministry of Commerce and Industry, Department of Industrial Policy and Promotion, under Industries (Development and Regulation) Act, 1951	No

Additional Specification Parameters - Surveillance Drone / Unmanned Aerial Vehicle (V2) (Defence Forces - Navy, Army And Air Force) (1 pieces)

Specification Parameter Name	Bid Requirement (Allowed Values)
* Drone Type * Frame * Flight Controller * Motors * Battery	* Cinewhoop FPV Drone (ready to fly) * 3.5-4 inch ducted carbon * F7 or higher * Brushless motors * Compatible with 4S-6S LiPo batteries

Specification Parameter Name	Bid Requirement (Allowed Values)
* Flight Time * Camera * FPV System * Video Transmission Range * Navigation	* Minimum 10 Mins * 4K UHD recording capability * HD digital FPV transmission * Min 5Km * GPS with GPS rescue/Return function
* Flight Modes * Receiver * Payload capacity * Safety Features * Warranty	* Acro, Angle and Horizon * ELRS 2.4GHz or equivalent * Min 200gm * Propeller guards, failsafe, low battery protection

* Bidders offering must also comply with the additional specification parameters mentioned above.

परिषी/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परिषी/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	*****	*****Gurdaspur	1	15

Special terms and conditions-Version:6 effective from 17-09-2025 for category Surveillance Drone / Unmanned Aerial Vehicle (V2) (Defence Forces - Navy, Army and Air Force)

1. This category is intended exclusively for - the naval, military or air forces of the Union of India. Procurement from other buyers may be cancelled.
2. Sellers in this category will require license for manufacturing under Industries (Development and Regulation - IDR) Act, 1951. The license will be issued by Minsitry of Commerce and Industry, Department of Industrial Policy and Promotion (DIPP). Link - <https://services.dpiit.gov.in/lms/document/PressNoteOne2019.pdf> can be referred.
3. Wherever applicable, catalogs are to be submitted with valid and active "Industrial License" as per the aforementioned Press Note. Also, seller shall issue a Certificate of Conformity for each UAS, stating responsibility of model confirmation to the issued Type Certificate and relevant data sheet.
4. Buyer shall verify the validity of "Industrial License", wherever applicable, issued to the seller before generating CRAC.

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Generic

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$, subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.

2. Generic

Bidder financial standing: The bidder should not be under liquidation, court receivership or similar proceedings, should not be bankrupt. Bidder to upload undertaking to this effect with bid.

3. **Generic**

Bidders shall quote only those products (Part of Service delivery) in the bid which are not obsolete in the market and has at least 2 years residual market life i.e. the offered product shall not be declared end-of-life by the OEM before this period.

4. **Generic**

Bidder shall submit the following documents along with their bid for Vendor Code Creation:

- a. Copy of PAN Card.
- b. Copy of GSTIN.
- c. Copy of Cancelled Cheque.
- d. Copy of EFT Mandate duly certified by Bank.

5. **Generic**

Data Sheet of the product(s) offered in the bid, are to be uploaded along with the bid documents. Buyers can match and verify the Data Sheet with the product specifications offered. In case of any unexplained mismatch of technical parameters, the bid is liable for rejection.

6. **Generic**

IT equipment shall be IPv6 ready from day one.

7. **Generic**

Malicious Code Certificate:

The seller should upload following certificate in the bid:-

(a) This is to certify that the Hardware and the Software being offered, as part of the contract, does not contain Embedded Malicious code that would activate procedures to :-

- (i) Inhibit the desires and designed function of the equipment.
- (ii) Cause physical damage to the user or equipment during the exploitation.
- (iii) Tap information resident or transient in the equipment/network.

(b) The firm will be considered to be in breach of the procurement contract, in case physical damage, loss of information or infringements related to copyright and Intellectual Property Right (IPRs) are caused due to activation of any such malicious code in embedded software.

8. **Generic**

NON DISCLOSURE DECLARATION CERTIFICATE (On Bidder Letter Head) to be uploaded with bid:

1. I M/s.

Firm's Name

hereby declare that I shall not disclose the contract or any provision, specification, plan, design, pattern, sample or information thereof to any third party during and after expiry of Contract.

2. If defying the norms as per the Contract a legal action may be taken against me as per the existing Rules.

9. **Service & Support**

Availability of Service Centres: Bidder/OEM must have a Functional Service Centre in the State of each Consignee's Location in case of carry-in warranty. (Not applicable in case of goods having on-site warranty). If service center is not already there at the time of bidding, successful bidder / OEM shall have to establish one within 30 days of award of contract. Payment shall be released only after submission of documentary evidence of having Functional Service Centre.

10. **Service & Support**

Dedicated /toll Free Telephone No. for Service Support : BIDDER/OEM must have Dedicated/toll Free Telephone No. for Service Support.

11. **Certificates**

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

12. **Certificates**

ISO 9001: The bidder or the OEM of the offered products must have ISO 9001 certification.

13. **Warranty**

Successful bidder will have to ensure that adequate number of dedicated technical service personals / engineers are designated / deployed for attending to the Service Request in a time bound manner and for ensuring Timely Servicing / rectification of defects during warranty period, as per Service level agreement indicated in the relevant clause of the bid.

14. **Warranty**

Warranty period of the supplied products shall be 1 years from the date of final acceptance of goods or after completion of installation, commissioning & testing of goods (if included in the scope of supply), at consignee location. OEM Warranty certificates must be submitted by Successful Bidder at the time of delivery of Goods. The seller should guarantee the rectification of goods in case of any break down during the guarantee period. Seller should have well established Installation, Commissioning, Training, Troubleshooting and Maintenance Service group in INDIA for attending the after sales service. Details of Service Centres near consignee destinations are to be uploaded along with the bid.

15. **Warranty**

Timely Servicing / rectification of defects during warranty period: After having been notified of the defects / service requirement during warranty period, Seller has to complete the required Service / Rectification within 10 days time limit. If the Seller fails to complete service / rectification with defined time limit, a penalty of 0.5% of Unit Price of the product shall be charged as penalty for each week of delay from the seller. Seller can deposit the penalty with the Buyer directly else the Buyer shall have a right to recover all such penalty amount from the Performance Security (PBG). Cumulative Penalty cannot exceed more than 10% of the total contract value after which the Buyer shall have the right to get the service / rectification done from alternate sources at the risk and cost of the Seller besides forfeiture of PBG. Seller shall be liable to re-imburse the cost of such service / rectification to the Buyer.

16. **Buyer Added Bid Specific ATC**

Buyer Added text based ATC clauses

1. The Offered drone shall be a Cinewhoop multirotor drone with qualifying under the Micro drone Category.
2. The drone shall be supplied complete with flight controller, camera system, batteries, GPS, charger, remote controller, propellers and all accessories required for operational use.
3. The FPV camera shall be minimum 1200TVL or equivalent HD Digital camera system with real time video transmission capability.
4. The drone shall provide minimum flight endurance of upto 30 mins under standard operational conditions.
5. The drone shall support GPS/GNSS based positioning and fail safe features such as return to home or equivalent.
6. The OEM/OEM-authorized bidder shall provide product datasheets, technical specification, and warranty documents at the time of supply.
7. The product offered shall be new unused and free from manufacturing defects with a minimum 12 months.
8. Chinese origin drone platforms, flight controllers communication modules and cameras shall not be accepted, wherever restricted by prevailing govt of India guidelines.
9. The bidder shall provide demonstration and operational trial to the use, if required by the consignee.

10. The supplied equipment shall conform to all applicable DGCA/Govt of India Regulations in force. Documents/ certificates of the same should be uploaded with the bid documents for verification.
11. Incomplete quotes will not be considered.
12. Neither the OEM nor the bidder should be currently debarred or blacklisted by any central/state/PSUs , organisation, or institution in India. Certificate for the same needs to be submitted.
13. All products must be delivered in a sealed condition.
14. The bidder must possess a registered office in India and authorised service centre in India to ensure a prompt response.
15. Certificate for accepting of all terms and conditions must be submitted with the bid documents.

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्यवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---